

Calendar Line 1

Case Name: *Sophie Yeh v. The Harker School, et al.*

Case No.: 23CV418929

PLAINTIFF’S MOTION TO SEVER

Plaintiff moves to sever Defendant The Harker School’s (“THS”) cross-complaint against Commercial Tree Care (“CTC”) pursuant to Code of Civil Procedure sections 1048 and 598. The motion is denied as to severance, but granted in part as to bifurcation of trial issues.

Code of Civil Procedure section 1048, subdivision (b), authorizes the Court to order separate trials of claims or issues “in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy.” Section 598 similarly permits the Court to order the sequence of trial issues where necessary to promote convenience, judicial economy, or the ends of justice. These provisions confer broad discretion to structure trial proceedings involving overlapping claims. (See *Omaha Indemnity Co. v. Superior Court* (1989) 209 Cal.App.3d 1266; *Grappo v. Coventry Fin. Corp.* (1991) 235 Cal.App.3d 496; *Pilliod v. Monsanto Co.* (2021) 67 Cal.App.5th 591.)

Here, Plaintiff’s complaint and THS’s cross-complaint arise from a single occurrence—the March 21, 2023 tree failure incident—and involve overlapping factual questions concerning the condition of the subject tree, inspection practices, and the scope and adequacy of Commercial Tree Care’s involvement. The Court previously permitted the filing of the cross-complaint and continued trial, recognizing that the claims arise from common operative facts and that a single proceeding would promote efficiency and avoid duplication of testimony.

The Court finds that complete severance is not warranted. The claims share substantial factual overlap, including witnesses and evidence concerning inspection, maintenance, and tree risk assessment. Severance would result in duplication of evidence, inconsistent presentation of overlapping issues, and inefficiency contrary to the purposes of sections 1048 and 598.

However, the Court is persuaded that limited bifurcation is appropriate to reduce the risk of juror confusion and to ensure orderly presentation of issues. Although evidence of CTC’s conduct will necessarily be relevant to Plaintiff’s negligence theory against THS, the distinct nature of THS’s indemnity, contribution, and contract-based claims against CTC warrants separation of those issues from Plaintiff’s claims for trial management purposes.

Accordingly, the Court orders as follows pursuant to Code of Civil Procedure section 598:

1. Phase One: Trial of Plaintiff’s claims against THS, including liability and damages; and
2. Phase Two (if necessary): Trial of THS’s cross-claims against CTC for indemnity, contribution, breach of contract, negligence, and related relief.

This structure allows Plaintiff’s claims to be presented without the added complexity of defendant-versus-defendant allocation and contract issues, while preserving THS’s ability to fully litigate its cross-claims in a subsequent phase if required.

The Court finds this approach best balances judicial economy, avoidance of prejudice, and orderly presentation of issues to the jury.

The motion is therefore DENIED as to severance and GRANTED IN PART as to bifurcation in the manner stated above.

Defendant to prepare the final proposed order, accompanied by the necessary EFS-020 Form, within 7 days of the hearing.

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Calendar Line 2**Case Name:** *Marybeth Lakso v. The Estate of Gary Lynn, et al.***Case No.** 24CV430597**PLAINTIFF'S MOTION TO TAX COSTS**

Defendants are prevailing parties following entry of summary judgment and are entitled to recover allowable costs under Code of Civil Procedure section 1032. The Court previously found Defendants' Code of Civil Procedure section 998 offers valid. The remaining issue concerns the amount of expert witness fees recoverable under Code of Civil Procedure section 998(c)(1).

Expert witness fees are recoverable only to the extent they were actually incurred and reasonably necessary to the litigation. Once Plaintiff raised specific objections regarding duplication, overlap, and lack of task-level allocation, Defendants bore the burden of providing sufficient evidence to permit meaningful judicial evaluation of reasonableness and necessity.

While Defendants have submitted billing summaries and declarations, the record does not adequately distinguish (1) the allocation of expert work among overlapping experts, or (2) the extent to which expert work was tied to issues remaining in dispute following the June 6, 2025 stipulation by the co-defendant physician. The Court does not find the expert work categorically unnecessary, but the evidentiary showing is insufficient to support full recovery of the amounts claimed.

Accordingly, the Court exercises its discretion under section 998(c)(1) to reduce the claimed expert witness fees as follows:

1. Orthopedic Experts (Atkin and Bray)

Plaintiff's objections regarding causation-focused testimony and limited demonstrated necessity are well-taken in part. However, the Court does not find the services entirely outside the scope of reasonable trial preparation.

Reduction methodology: 50% reduction of combined fees.

- Claimed: \$61,325.00
- Allowed: \$30,662.50

2. Administrative Experts (Coleman and Lahana)

The record demonstrates substantial overlap in subject matter, materials reviewed, and deposition preparation. Defendants have not adequately distinguished the necessity of retaining two similarly situated administrative experts at full rates.

Allocation methodology:

- Allow Coleman in full (as primary expert)